

CHAPTER 31.

An Act to amend Section Sixteen of the Merchandise Marks Act, 1887. [16th December 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where any goods which, if sold, would be liable to forfeiture under the Merchandise Marks Act, 1887, are imported into the United Kingdom, and the goods bear any name or trade mark being or purporting to be the name or trade mark of any manufacturer, dealer, or trader in the United Kingdom, and the Commissioners of Customs and Excise are, upon representations made to them, satisfied that the use of the name or trade mark is fraudulent, the proper officer of Customs and Excise may require the importer of the goods, or his agent, to produce any documents in his possession relating to the goods, and to furnish information as to the name and address of the person by whom the goods were consigned to the United Kingdom and the name and address of the person to whom the goods were sent in the United Kingdom ; and, if the importer or his agent fails within fourteen days to comply with any such requirement, he shall, for each offence, forfeit the sum of one hundred pounds.

Power to require information in respect of imported goods bearing fraudulent marks. 50 & 51 Vict. c. 28.

(2) Any information obtained from the importer of the goods or his agent under this section, or from any other source, may be communicated by the Commissioners to any person whose name or trade mark is alleged to have been used or infringed.

(3) This section shall have effect as if it were part of section sixteen of the Merchandise Marks Act, 1887.

2. This Act may be cited as the Merchandise Marks Act, 1911, and the Merchandise Marks Acts, 1887 to 1894, and this Act may be cited together as the Merchandise Marks Acts, 1887 to 1911.

Short title.

CHAPTER 32.

An Act to make provision for the better administration by the Central and Local Authorities in England and Wales of the Enactments relating to Education.

[16th December 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :